CONTRACT OF LEASE

JUN 0 9 2025

This Contract of Lease (the "Contract") is made and entered into this ___ day of _____, 2025 at Makati, Philippines, by and between:

MEDICAL DOCTORS, INC., (MAKATI MEDICAL CENTER) a corporation duly organized and existing under and by virtue of Philippine laws with business and postal address at #2 Amorsolo Street, Makati City, represented herein by its Senior Vice President and Chief Finance Officer CO-CEO, **ARNOLD C. OCAMPO**, hereinafter referred to as "LESSOR";

- and -

MARY GRACE FOODS, INC., a corporation duly organized and existing under and by virtue of Philippine laws with business and postal address at Block 2 Lot 25 & 27, Marian Road 2, San Martin de Porres, Parañaque City, represented herein by its Director, **ADRIAN P. DIMACALI**, hereinafter referred to as "LESSEE".

W I T N E S S E T H, That:

For and in consideration of the payment of rent and other sums due hereunder, the LESSOR hereby leases, lets, and demises unto LESSEE, and the latter does hereby accept under lease, certain Room Space constituting the Leased Premises, which are more particularly described hereof, which are both made integral parts of this Contract;

This lease is granted by LESSOR and accepted by LESSEE subject to the following terms, covenants, conditions and restrictions.

ARTICLE 1 – DEFINITION OF TERMS

DEFINITIONS - As used herein, the following terms shall have the following respective meanings:

"Hospital Building" shall refer to the improvement where the Leased Premises are located.

"Hospital Common Areas" shall refer to all areas and facilities in the Hospital Building which have been designated by LESSOR for the general use and convenience of all LESSEES or occupants of the Building, their respective employees, patients and guests.

"Force Majeure" shall mean an act, event or cause which is unexpected or unforeseen, or if foreseen, must be impossible to avoid, or which is beyond the control of LESSOR or LESSEE. The term includes but is not limited to rebellion, insurrection, labor unrest, lockout, work stoppage, strikes on a citywide or nationwide scale, flood, typhoon, earthquake, robbery, theft, terrorism, or any other crime.

"Leased Premises" shall refer to the space/unit with a total floor area of **8.0 sqm located at Ground Floor, Tower 1.**

ARTICLE 2 - LEASE TERM AND DELIVERY OF LEASED PREMISES

2.1 LEASE TERM - This lease shall be for a period of **Three (3) year** commencing from **May 01, 2025 to April 30, 2028**. Lessor, when it deems it necessary to recover the premises for its own business needs, shall have the option to pre-terminate the lease anytime subject to a prior **60-day notice**. Unless otherwise renewed under the conditions established hereunder, this lease shall not be deemed extended beyond the date specified herein for its termination for any reason whatsoever. There shall be no tacit renewal of this Contract, notwithstanding the continuation of LESSEE in the possession of the Leased Premises for any length of time after expiration of the term of this lease.

This lease may be renewed for a specified period upon the written agreement of the LESSOR and the LESSEE and under such terms and conditions as may be acceptable to them, provided that, the LESSEE shall have faithfully complied with all the terms of this Contract and the LESSEE shall notify the LESSOR in writing of its desire to renew the lease at least ninety (90) days prior to its expiration. In the event that the LESSOR and the LESSEE are unable to agree on the terms and conditions under which this Contract shall be renewed within the ninety (90) day period prior to expiration, then this lease shall be

automatically terminated and the LESSOR shall be entitled to the rights granted under this Contract by reason of such termination.

2.2 DELIVERY OF LEASED PREMISES - LESSOR shall deliver to LESSEE physical possession of the Leased Premises in "as is" condition on or before the date specified in this lease contract for the commencement of the lease.

The LESSOR may require the LESSEE and the LESSEE shall accordingly undertake to change, renovate or modify the interiors of the leased premises at such times and using concepts and designs as the LESSOR and the LESSEE may subsequently agree upon provided that the consent of the LESSOR shall not unreasonably be withheld. In the event that the LESSOR and the LESSEE are unable to agree on the conditions for the change or renovation, the LESSOR may exercise its right not to renew the lease.

Upon delivery of the leased premises, LESSEE may commence any and all works necessary to render the leased premises suitable for a food kiosk in connection with the LESSEE's scope of services which are in accordance with plans and specifications approved by LESSOR.

If LESSOR is unable to transfer physical possession of the Leased Premises to LESSEE on the date specified herein due to (i) the refusal of a prior lessee to vacate the Leased Premises notwithstanding the expiration or termination of the lease agreed upon between such prior lessee and LESSOR, or (ii) any other reason beyond the control of LESSOR, LESSOR shall not be subject to any liability for its failure to deliver the Leased Premises to LESSEE on the date specified. Neither shall such failure affect the validity of this lease or the obligations of LESSEE hereunder; provided, that the commencement date for the rental payments shall be deferred to a date to be mutually determined by the parties.

ARTICLE 3 - USE AND OCCUPANCY OF THE LEASED PREMISES

3.1 AUTHORIZED USE - The Leased Premises shall be used exclusively as food kiosk The LESSEE shall not divert the Leased Premises to other uses, it being expressly agreed that if, at any time during the Lease Term, any part of the Leased Premises is not used for purpose specified above, LESSOR shall have the sole discretion and right to either (a) cancel this Contract in accordance with Article 11 hereof; (b) increase the rent; or (c) compel LESSEE to stop any unauthorized activity conducted in the Leased Premises.

The Leased Premises shall be referred to as **MARY GRACE** with operating hours from 9:00 am to 9:00 pm. Extension of operating hours is subject to the approval of the LESSOR.

3.2 PROHIBITED ACTIVITIES - Without limiting the generality of the foregoing, LESSEE shall not use or permit the Leased Premises or Hospital Common Areas to be used to undertake activities unrelated to that of a food kiosk. Any other unrelated/incidental activities, not covered within said scope should be pre- approved by the LESSOR.

3.3 CONDUCT OF PRACTICE - LESSEE shall at all times, during the term of this lease, conduct its business pursuant to its charter or in a reputable manner in accordance with the urban design quality of the building and the business and operating standards of a first class state of the art building. The LESSEE undertakes to pay all applicable taxes, licenses, assessments, fees and other charges due the government from the operation of the concession, and obtain all the permits, licenses and certifications required by law, ordinances or regulations with respect to the concession and all its personnel, The LESSEE shall hold the LESSOR free and harmless from any liability such as taxes, assessment, fees, charges, permits, licenses, certificates and the like.

3.4 RIGHTS RESERVED TO LESSOR - Where applicable, the grant of this lease shall not prejudice or adversely affect the exclusive and absolute rights of the LESSOR:

(a) to provide for the free and uninterrupted passage and running of water, drainage, electricity, telecommunications or other public utilities or services through the installation of conduits, pipes, wires, cables or ducts as are now or may hereafter be installed in, on or under the Leased Premises, serving or capable of serving the Building, or the Hospital Common Areas or any adjoining property, and to enter the Leased Premises to inspect, repair or maintain such conduits, pipes, wires, cables or ducts at least forty-eight (48) hours after the issuance of a prior written notice to LESSEE, except in cases of emergency when such notice shall not be required. Any such activity shall be effected in a manner as to cause the least inconvenience to LESSEE, patients and guests;

(b) to erect, alter or consent to the erection or alteration of any building located on any adjoining or neighboring property, notwithstanding that such erection or alteration

may diminish the access of light, view or air enjoyed by the Leased Premises, or to deal with such neighboring or adjoining property as LESSOR shall see fit and appropriate;

(c) to enjoy subjacent and lateral support from the Leased Premises for the remainder of the Hospital Building;

(d) to name or re-name the Hospital Building with any such style or name and, from time to time, to change, alter, substitute or abandon any such name, without compensation to LESSEE or the other tenants of the Hospital Building; provided, that LESSOR shall give LESSEE not less than two (2) months' prior written notice of LESSOR's intention to do so;

(e) to improve, change, alter, extend, reduce, add or otherwise deal in any manner with the arrangement, design or decoration of the Hospital Common Areas; provided, that in exercising such right, LESSOR will endeavor to cause as little inconvenience to LESSEE as practicable under the circumstances;

(f) to appoint, ratify or confirm any person or firm under and by virtue of a duly executed special power of attorney which upon its execution shall be properly appended to this Contract and made an integral part hereof to manage and administer the Hospital Building or tower and to delegate to such person or firm the power to adopt rules and regulations as it shall deem necessary for the management, maintenance or operation of the Hospital Building or tower and to implement the rules and regulations adopted by the LESSOR and for this purpose, any notice, act decision, forbearance or consent required to be given or done hereunder shall be fully and effectively done or given if expressed to by or on behalf of such person or firm.

(g) to have the option to create, make, impose, adopt, supplement, abolish or amend as it may consider necessary for the management, operations and maintenance of the Hospital Building or the operation and use of the common areas, driveways, entrances, or exits in the Hospital Building.

It is understood that sufficient notices shall be given to the LESSEE prior to the effectivity of the rules and regulations, to provide the LESSEE the opportunity to discuss, oppose or otherwise terminate the sub-lease, should such rules and regulations greatly hamper or damage the business or operation of the LESSEE.

(h) to undertake the improvement of the Hospital Building or the Hospital Common Areas or any development work in an adjoining lot or within the vicinity of the Hospital Building, in such a manner as to cause the least inconvenience to LESSEE, its employees, visiting doctors/consultants, patients, guests and clients; and for this purpose, LESSEE shall not hold LESSOR liable for any resulting disturbance or discomfort arising out of such development work or improvement.

3.5 FIREARMS - LESSEE shall not permit anyone to bear firearms within the Leased Premises or the Building. LESSEE's employees, personnel, visitors, and patients must deposit their firearms with the security personnel of LESSOR upon entering the Hospital Building.

3.6 EXTENT OF LEASED PREMISES – The lease does not extend to the outside portions of the area actually occupied by the LESSEE. The Common Areas are likewise not part of the Leased Premises and no property, equipment or any form of asset of the LESSEE shall be placed therein or thereon. In any case, the LESSOR shall have the right to cause the removal of property/assets belonging to the LESSEE or any person found on or within the corridors, hallways or other common areas and charge the cost of such removal, handling and storage if necessary to the LESSEE.

3.7 NO GOODWILL – The grant to the LESSEE of the physical possession, use and enjoyment of the Leased Premises confers no goodwill or patronage rights over the Leased Premises to the LESSEE, it being recognized that such rights exclusively belong to the LESSOR of the Leased Premises. Neither shall the LESSEE have any right to sell or dispose of said goodwill or patronage rights to any person.

ARTICLE 4 - RENT AND OTHER CHARGES

4.1 RENT - The monthly rent of **ONE HUNDRED THIRTY-TREE THOUSAND PESOS (₱ 133,000.00)** for the first (1st) year; **ONE HUNDRED FORTY-SIX THOUSAND FOUR HUNDRED PESOS (₱ 146,400.00)** for the second (2nd) year and **ONE HUNDRED SIXTY-ONE THOUSAND PESOS (₱**

161,000.00) for the third (3rd) year, VAT exclusive, shall consist of the consideration for the usage of the leased space excluding electric, water consumption, garbage disposal fees and other Common Utilities and Service Areas (CUSA) charges. Please see breakdown of expenses for your reference:

CUSA (VAT Exclusive)	P 800.00/month
Garbage Fee (VAT Exclusive)	P 500.00/month
Pest Control Fee (VAT Exclusive)	P 700.00/month
Electricity	Charges based on meter reading
Security Deposit	A Security Deposit check amounting to ₱ **252,000.00** is required and payable upon signing of this contract. The said amount represents the difference between the required Security Deposit and your existing Security Deposit.

The rental fee shall be payable on or before the 5th day of the month via twelve (12) postdated checks covering the lease agreement period, to be issued within one (1) month from the commencement of this agreement.

The rental fee shall be subject to a yearly escalation of 10% base on prior year's rent.

The request and installation of a direct telephone line will be in the name and to the account of the LESSEE and will be initiated and followed-up with the telephone provider by the LESSEE.

Any and all expenses for Documentary Stamp Taxes due from the execution of this agreement shall be for the sole account of the Lessee.

4.2 SECURITY DEPOSIT - A security deposit (not subject to tax) equivalent to two (2) months' rent and an advanced rent equivalent to two (2) months are required and payable upon signing of this Contract. Said deposit stands as security for the proper and due performance of all the LESSEE'S obligations under this Contract. The security deposit shall be maintained by the LESSEE and shall also be increased correspondingly by the LESSOR as and when the rent increases pursuant to this Contract. Such increase shall be payable on due date specified in the applicable statement of account. Advanced rent shall be applied to the LESSEE's first two months of operations.

4.3 APPLICATION OF SECURITY DEPOSIT - The security deposit shall be forfeited in favor of the LESSOR upon the occurrence of the following events: (i) the LESSEE fails to occupy the Leased Premises for the full term of the lease or any extension or renewal thereof. Upon the occurrence of any of these events, the security (or the balance thereof which should otherwise have been returned to the LESSEE had such termination not occurred) shall be forfeited in favor of the LESSOR, in addition to whatever damages which may be due to the LESSOR arising from the failure of the LESSEE to occupy the Leased Premises or due to the termination of this Contract. In the event, however, that this lease is terminated at the instance of the LESSOR without any fault or negligence of the LESSEE but with its conformity, the security shall be returned to the LESSEE net of the amounts which may be deducted there from under this provision.

4.4 REFUND OF SECURITY DEPOSIT - The security deposit shall be returned to the LESSEE, without interest, only after the expiration of the term of this lease and after the LESSEE shall have completely and satisfactorily vacated and delivered the Leased Premises to the LESSOR, less whatever amounts the LESSEE may owe the LESSOR or which the LESSOR may apply against the security as provided hereunder within one month after all the obligations of the LESSEE has been settled. It shall be understood, however, that the application of the security against any unpaid obligation of the LESSEE shall be effected only at the termination of the lease. The LESSOR shall, notwithstanding the delivery of the Leased Premises to the LESSOR by the LESSEE, have the right to withhold any portion of the security until the LESSOR shall have received statement of account from utility companies supplying telephone, water, electric power or public utility services to the Leased Premises, covering the period ending on the date the LESSEE shall have completely vacated and delivered the Leased Premises to the LESSOR. The amount withheld shall answer for the payment of such statements of account and the balance thereof remaining with the LESSOR after such payment shall be returned to the LESSEE without interest. Likewise, should the LESSEE have any other obligation which remains due and unpaid under any other contract with the LESSOR, the LESSOR shall have the right to apply the amount of these unpaid obligations against the security in settlement of such obligation upon the termination of the lease.

4.5 PENALTY CHARGES - Without prejudice to the exercise by LESSOR of its rights under the penal provisions herein, LESSEE shall pay to LESSOR a penalty charge on any amount due under this Contract which remains unpaid on due date thereof at the rate of TWO PERCENT (2%) per month, to be computed from the date of delinquency until such amount is paid in full.

The preceding penalty charges shall apply to any and all arrearages in the amounts payable by LESSEE, including but not limited to rentals which includes utility charges, and reimbursement of

appropriate real property taxes as may be applicable.

In case of cancellation or termination of this Contract due to default or breach of its terms by LESSEE, LESSEE shall pay all attorney's fees, costs and expenses of litigation that may be incurred by LESSOR in enforcing its rights under this Contract, as well as all unpaid rents, fees, charges, assessments and reimbursements, including penalties, to which LESSOR may be entitled.

4.6 LIEN - Unpaid rents and charges payable by the LESSEE to the LESSOR for one (1) year under this Contract shall constitute a preferred lien on all personal properties of the LESSEE found or located in the Leased Premises in accordance with Articles 2241 and 2243 of the Civil Code. For this purpose, the LESSOR is hereby authorized to prevent the removal of the said properties from the Leased Premises or demand their return from any possessor thereof.

4.7 APPLICATION OF PAYMENTS – Any payment received by LESSOR shall be applied against the statement of account or billing with the earliest date. In the event that the payment of penalty, rent or other charges is covered by one statement of account, then the payment received by LESSOR shall be applied in the payment of obligations stated therein in the following order of priority: (i) first, against the penalty due, (ii) and against unpaid rent (which includes the utility charges). Should the payment received be insufficient to completely settle any outstanding obligation, whether covered in one statement of account or billing, or otherwise, subsequent payments to be made by LESSEE shall be applied to the payment of such unpaid amount.

4.8 INSPECTION BY LESSOR - To determine compliance with this agreement, LESSOR, with prior written notice to the LESSEE, shall have access to the Leased Premises at reasonable hours and never in such a manner as will hamper the operations of the facility or upset or inconvenience the clientele who may be present and able to witness the inspection that is taking place.

ARTICLE 5 - HOSPITAL COMMON AREAS and FACILITIES

5.1 USE OF HOSPITAL COMMON AREAS and FACILITIES - During the term of this lease, LESSEE and its officers, employees, agents, patients and guests shall have the non-exclusive right to use the Hospital Common Areas and its facilities, as far as the same are necessary for the practice of scope of allowed services to be provided, subject to any rights, powers and privileges reserved to LESSOR as provided hereunder and to the right of LESSOR to regulate, restrict and impose charges for such use.

5.2 OPERATION OF HOSPITAL COMMON AREAS and OTHER FACILITIES - During the term of this lease, LESSOR shall exclusively operate, manage, and maintain the Hospital Common Areas and its facilities. The manner in which the Hospital Common Areas shall be maintained, operated and managed, and the amounts to be spent for such maintenance, operation and management shall be determined at the sole discretion of LESSOR. The use of the Hospital Common Areas and the facilities therein shall be subject to such regulations and charges which may be imposed by LESSOR. LESSOR shall have the right to close, if necessary, all or any portion of such areas, to such extent as may be legally sufficient in the opinion of LESSOR's counsel, to prevent the accrual of rights of any person or of the public therein, or to close temporarily all or any portion of such areas for whatever reason.

ARTICLE 6 – PUBLIC UTILITIES AND SERVICES

6.1 UTILITY CHARGES - All fees, costs or other charges to be incurred for supplying the Leased Premises with public services or utilities shall be borne by LESSEE. Moreover, applicable utility charges including but not limited to electricity, water and telephone shall be for the account of the LESSEE.

6.2 INSTALLATIONS

a.) The LESSEE may request the LESSOR for the installation at the LESSEE's expense of other public utility fixtures or facilities not included in the monthly rent. The LESSOR may choose to deny or approve such request at its discretion or subject to its approval of the same, to such conditions as the LESSOR may impose. All applicable permits which may be required for the installation and operation of these additional fixtures and facilities when so approved by the LESSOR, shall be obtained and maintained by the LESSEE at its expense. The LESSEE shall at all times keep in good order and condition the electrical and other mechanical equipment within or serving the Leased Premises. The LESSEE shall comply with all the rules, regulations and requirements imposed by the appropriate government agencies or public utility companies in connection therewith.

b.) The LESSOR and any duly authorized public utility or service entity shall be allowed free access to and entry into the Leased Premises for the purpose of installing, inspecting or repairing generators,

electrical apparatus, communication facilities, electric poles, metal alley arms and all the accessories and appurtenances connected therewith, or performing all other acts necessary to ensure public safety and the preservation of the utility lines and facilities.

6.3 INSTALLATION REQUIRES APPROVAL - For the purpose of obtaining the prior approval of the LESSOR for the installation of additional public utility or public service facilities in the Leased Premises, the LESSEE shall submit to the LESSOR, the necessary plans and specifications for the installation of the said facilities or fixtures. Such installation should be made by a licensed electrician or technician who shall cause no injury to the Leased Premises or who shall not weaken the structural integrity of the Building. The LESSOR reserves the right to require the LESSEE to use the LESSOR's building contractor for any renovation of the Leased Premises when in the LESSOR's best judgment, the proposed renovation may adversely affect any of warranties or guarantees given by any of the contractors of the Hospital Building. Any resulting additional electrical or structural load must be within the maximum electrical or structural capacity of the Leased Premises.

6.4 EMERGENCY POWER - The LESSOR has the option to install and operate a power generator for the Hospital Building. Should the LESSOR exercise such option, this shall be at no cost to the LESSEE.

6.5 DISCONNECTION OF UTILITIES - In the event that LESSEE fails to pay for the charges or fees incurred in connection with the supply to, consumption and use of public utilities and services in the Leased Premises not covered by the monthly rental fee for a period of two (2) consecutive months, the LESSOR after due notice to the LESSEE, shall have the right to disconnect or discontinue the supply thereof for such period that any of the said charges are left unpaid. This right shall be in addition to LESSOR's other rights provided in this Contract.

6.6 NO RESPONSIBILITY - LESSOR assumes no responsibility for the inadequacy, quality or interruption in the utilities or services consumed or supplied in or to the Leased Premises, unless the same be due to LESSOR's inexcusable fault or gross negligence.

ARTICLE 7 - LESSEE'S ADDITIONAL COVENANTS

LESSEE agrees that, in addition to its other undertakings under this Contract, it will abide by the following:

7.1 ASSIGNMENT OR TRANSFER OF RIGHTS - The LESSEE shall not assign or transfer its rights under this agreement, nor sub-lease all or any part of the Leased Premises or enter into any arrangement whereby the use or possession of any part of the Leased Premises is transferred to any person or entity, irrespective of whether rental or other consideration is given therefore. No right, title or interest to, in and under this agreement or the Leased Premises shall be deemed conferred or vested in any person other than the LESSEE, to the extent specified herein, without the LESSOR's prior written consent.

It is expressly understood that LESSEE has no goodwill or patronage rights over the Leased Premises and that such rights belong exclusively to LESSOR. LESSEE shall not sell or dispose of said goodwill or patronage rights to any third person or entity.

7.2 MORTGAGE – The LESSEE shall not mortgage, encumber or create any security interest in and to the leasehold rights granted to the LESSEE.

7.3 NOTICES AND SIGNS - The LESSEE shall not affix, inscribe or paint, or cause the affixing, inscribing or painting of, any notice, sign or other advertising media on any part of the Leased Premises or Hospital Building, including any sign or media which when illuminated shall be visible from outside the Leased Premises or which, in the opinion of the LESSOR, is obscene, not appropriate for the Hospital Building or otherwise offensive in nature. If so allowed by the LESSOR in writing, the sign or media shall be of such size and styles as the LESSOR may determine. Neither shall the LESSEE permit or give consent to any person or entity to affix, inscribe or paint any notice, sign or other advertising media on the Leased Premises or on any part of the Hospital Building, as if said person or entity uses, holds office or is otherwise established at the Leased Premises or any part thereof. Only the name and nomenclature of the LESSEE as set out in this agreement shall be posted, at LESSEE's expense, at a designated area agreed upon by both parties and advertised in the directory of LESSEES to be maintained at the expense of the LESSOR in the ground floor of the Hospital Building. The LESSOR shall have the right to require the LESSEE to remove any sign which the LESSOR may consider to be inappropriate through a proper written notice citing therein the specific reason why the LESSOR consider such notice, sign, advertising, etc. to be inappropriate. Upon failure of the LESSEE to comply within one week, the LESSOR shall have the authority, without incurring any liability, to enter the Leased Premises if located within, remove any sign/s it

may consider inappropriate, and charge the costs thereof to the LESSEE without any and all kinds of liabilities whatsoever for doing so.

7.4 NAME OF THE BUSINESS AND BUILDING - The LESSEE agrees that the LESSOR's name or the name of the Hospital Building shall not be used in any confusing, detrimental or misleading manner in connection with the LESSEE's own trade name, and upon termination of this lease, the LESSEE shall cease to use the name of the LESSOR, the Hospital Building or any part thereof in any manner, whether in connection with the LESSEE's own business or trade name or otherwise.

7.5 ALTERATIONS, ADDITIONS OR IMPROVEMENTS

a.) The LESSEE shall not make any alteration, addition or improvement within the Leased Premises or in any of the common areas or effect the installation of any fixture required by the conduct of its business, without the prior written consent of the LESSOR and then subject to such terms and conditions as may be imposed by the LESSOR as it deems fit. All alterations, additions or improvements made by the LESSEE as well as any alteration, improvement, addition or installation in or on the Leased Premises shall be done in good workmanlike fashion and at the LESSEE's cost. All building architectural, engineering, conceptual plans and specifications for any alteration, addition or improvement shall be subject to the approval of the LESSOR which shall not be unreasonably withheld. The LESSOR reserves the right to require the LESSEE to use the LESSOR's Hospital Building contractor for any renovation of the Leased Premises when in the LESSOR's best judgment the proposed renovation may adversely affect any of the warranties or guarantees given by any of the contractors of the Hospital Building. The approval by the LESSOR of such alterations, additions or improvements shall in no event relieve the LESSEE from the responsibility on damages sustained by third parties relative to such acts, of obtaining all the necessary permits and licenses pertaining to such alterations, additions improvements or installations or from paying the necessary taxes, insurance premium or fees as shall be necessary or appropriate in connection therewith. The LESSEE shall give all the notices required and shall comply with all ordinances, rules and regulations issued by governmental agencies and public utility companies having jurisdiction over the same.

b.) All alterations, additions or improvements made by the LESSEE, as well as any alteration, improvement or installation placed in or on the Leased Premises by the LESSOR which when removed from the leased premises shall cause damage to the area subleased or to the structure of the building, except movable furniture and fixtures placed in the Leased Premises at the expense of the LESSEE and removable without defacing or injuring any ceiling, floor, wall, or any portion of the Hospital Building or the Leased Premises, shall become the property of the LESSOR at the expiry or termination of this lease, and shall remain upon and be surrendered with the Leased Premises as part thereof without compensation for their value to the LESSEE, provided that should the LESSEE opt to remove any alteration, addition or improvement it has introduced and removal thereof should cause damage to the building, the LESSEE undertakes to repair any such damage at its own expense and with dispatch. LESSEE, likewise, undertakes to reimburse with dispatch any loses which the LESSOR may incur by reason of the repairs.

7.6 DRILLING OR DEFACING - LESSEE shall not install or place any load, apparatus or suffer any act, installation, alteration or addition to be made or done in or to the common areas, the Leased Premises or any part of the Hospital Building which may cause damage thereto including, without limitation, any cutting, maiming, marking, defacing or drilling into or of any part of the Hospital Building, Leased Premises or Hospital Common Areas.

7.7 LOAD LIMITATIONS - The LESSEE shall not install or place any load, apparatus, equipment, article or thing in any part of the Leased Premises, the weight or location of which in the Leased Premises will violate the maximum load limitation for the Leased Premises as determined by the LESSOR for the floor of the Hospital Building where the Leased Premises is located. For this purpose, the LESSEE shall obtain the prior written approval of the LESSOR for the entry, installation and/or removal of any load, apparatus, equipment, article or thing into and from the Leased Premises. The LESSEE shall also comply with the requirements imposed by the LESSOR for keeping such equipment, load or apparatus within the Leased Premises, including the use of supports of such dimension and material to distribute the weight of such equipment load or apparatus as the LESSOR may deem necessary. Neither shall the LESSEE install, without the prior written approval of the LESSOR, any air-conditioning equipment in the Leased Premises nor any other plant, equipment, apparatus or machinery which requires additional wiring or which consumes additional electricity consumption. The LESSEE shall not permit, suffer or cause any act to be done whereby the maximum allowable voltage capacity of the Leased Premises shall be exceeded.

7.8 SHADES, AWNINGS, BLINDS - LESSEE shall not hang or fix any shades, awnings, blinds or window guards of any description, shelters or coverings, wire or aerial wiring, supports, iron brackets or any other thing on any part of the Hospital Building, including the roof or exterior wall of the Leased Premises, without the prior written consent of LESSOR. If so allowed by LESSOR, any shades, awnings, blinds or window guards shall be of such size and style as may be approved by LESSOR.

7.9 USE OF LEASED PREMISES OR COMMON AREAS - The LESSEE shall not use, cause or permit the use of the Leased Premises or common areas in any improper manner for any purpose other

than that for which they are respectively intended. Without limiting the generality of the foregoing, the LESSEE shall not use or permit the Leased Premises or common areas to be used as sleeping quarters or domestic premises or allow any person to remain in the Leased Premises overnight, nor allow the Leased Premises or the common areas to be used for drying laundry, hanging or storing any article or thing thereon provided that the LESSEE's security personnel may stay overnight in the leased premises only for the purpose of providing security to the LESSEE's area and provided further that the identity of the LESSEE and security personnel who shall stay overnight has been properly communicated to the LESSOR. The common areas shall not be used for loitering or eating. The LESSEE shall not allow the Leased Premises or common areas to be used by any person for canvassing, peddling, touting or soliciting for business or distributing any booklet, pamphlet and advertising material or for any illegal or immoral purpose, or in any manner which may provide basis for the imposition of a fine, forfeiture or penalty against the LESSOR under the applicable law. Neither shall the Leased Premises be used for the manufacture or storage of goods, articles or things, other than storage of goods for the purpose of and in quantities consistent with the LESSEE's business as carried on at the Leased Premises, or keep store or permit or suffer to be kept and stored any dangerous goods or other explosive or hazardous substance. No auction, fire, bankruptcy, close-down or similar sales of a retail business nor any other unethical type of business operation shall be conducted in the Leased Premises.

7.10 NO OBSTRUCTION OF COMMON AREAS - The sidewalks, entries, passages and corridors of the Hospital Building shall not be obstructed or used by the LESSEE for any purpose other than for ingress to or egress from the Hospital Building. No disturbing, noisy or improper activities shall be allowed to be carried therein or thereon, using loud speakers, television, phonographs, radios, or other devices which will be in any manner audible or visible outside the Leased Premises without the prior written consent of the LESSOR. In no instance shall the LESSEE place boxes, cartons, packages, reuse, dust bins, garbage can, furniture or chattels in the Common Areas, which should be kept free and clear from all obstructions at all times. For purposes hereof, the LESSOR shall in addition to its other remedies as provided hereunder or in law, be entitled without notice and at LESSEE's expense, to remove, store or dispose of any such obstruction as the LESSOR shall see fit, without incurring any liability to the LESSEE. The LESSEE shall, on demand, pay or reimburse the LESSOR for all the expenses incurred in such removal or storage.

7.11 LOADING AND UNLOADING OF GOODS - The LESSEE shall load and unload cargoes, goods, articles or things only during such hours and through such entrances and routes as shall be determined by the LESSOR from time to time.

7.12 MAINTENANCE OF LEASED PREMISES - Both LESSOR and LESSEE shall well and sufficiently preserve, repair and maintain in good, clean tenantable condition, the interiors of the Leased Premises, including the flooring, interior plaster or other finishes, doors, windows, cables, conduits, wirings, sockets, electrical installations, and plumbing fixtures found in or about the Leased Premises. The Leased Premises and installations supplied by LESSOR shall be kept in good clean working condition and repair. Expenses for repair and maintenance of utilities or facilities provided for and is inclusive in the monthly rental fee will be borne by the LESSOR. Expenses for repair and maintenance of items not part of the monthly rental fee such as dividers, direct telephone lines, television sets shall be to the account of the LESSEE. The LESSEE shall also be responsible for the payment of all charges, costs, expenses, dues, assessments, levies, taxes or insurance premiums which may be imposed or collected in connection with the installation, operation, of such additional fixtures and facilities. LESSEE shall keep drains, pipes, sanitary or plumbing apparatus used exclusively by LESSEE, its employees, guests, or patients in good clean and tenantable condition, in accordance with the requirements imposed by the Hospital Building Rules and applicable regulations of governmental authorities. LESSOR shall take all such steps and precautions at its own cost to prevent the Leased Premises from becoming infested with termites, rats, mice, cockroaches or other pests or vermin. LESSEE agrees to cooperate and implement measures to prevent such infestations.

LESSEE shall permit LESSOR or the authorized representatives of public utility companies, at reasonable times, after due prior written notice to LESSEE, to enter the Leased Premises for the purpose of undertaking the repair and maintenance of utilities, facilities and other structural elements used or shared in common by LESSEE with the other lessees of the Building, inspecting the condition of the Leased Premises or for determining the LESSEE's compliance with this Contract. LESSOR shall be entitled without incurring any liability whatsoever, in the event of an emergency, to enter the Leased Premises as the LESSEE's attorney-in-fact, to undertake the necessary repairs or conduct the inspection thereof for the protection of the Leased Premises and/or the Building.

7.13 INCREASE IN INSURABLE RISK - LESSEE shall not use the Leased Premises, the Hospital Building or any part thereof in any manner which will cause insurance policies of the Leased Premises or the Building against loss or damage caused by fire, storm, typhoon, or other insurable perils and/or loss or claims by third parties to be rendered void and voidable, or whereby the premium due thereon may be increased. Thus, LESSEE shall not bring into, store or install within the Leased Premises anything of highly flammable nature, explosive materials or any apparatus, machinery or equipment which may

expose the Leased Premises to fire. If, as a result of any act, deed, matter or thing done or permitted by LESSEE, the premium on any such insurance policy is increased, LESSOR shall be entitled, without prejudice to any other remedy provided hereunder, to recover from LESSEE the amount of such increase in premium and to be indemnified by LESSEE against all claims, losses, damages or claims sustained or made against LESSOR by any person as a result of a breach of this Article.

For the construction of the Leased Premises, the LESSEE shall cause its contractors prior to the commencement of any construction or renovation works, to obtain a CONTRACTOR'S ALL RISK (CAR) Insurance from a reputable insurance company in an amount acceptable to the LESSOR, which shall cover the contract works, the Leased Premises and properties surrounding the Leased Premises, liability to persons due to bodily injury and property damage in the course of construction or renovation arising out of or in connection with the fault or negligence of the LESSEE, its contractors, suppliers or workers undertaking such construction or renovation or the failure of the LESSEE to comply with the LESSOR'S construction guidelines for the Leased Premises.

7.14 NUISANCES - LESSEE shall not permit or suffer to be permitted any music or noise to emanate from the Leased Premises which in the reasonable opinion of LESSOR may constitute a nuisance or annoyance or give cause for reasonable complaint from LESSOR or other lessees, patients and guests. Neither shall it permit any odor or noxious smell, which in the sole opinion of LESSOR is offensive or unusual to emanate from the Leased Premises, nor keep or suffer to be kept any animals or pets inside the Leased Premises. In the event that LESSEE violates any of the prohibitions herein stated, it shall be liable for any and all damages which may be caused to LESSOR, other tenants and occupants of the Building, including their employees, agents, representatives, and patients, in addition to LESSOR's right to cancel this Contract.

7.15 INSPECTION PRIOR TO EXPIRY OF LEASE - During the last three (3) calendar months immediately preceding the expiration of the Lease Term, LESSEE shall allow, during business hours and upon prior written notice, LESSOR's authorized representatives to inspect the Leased Premises. During such period, the LESSOR may exhibit, where it shall think fit, a notice of offering the Leased Premises for lease, which the Sub-lessee shall not conceal in any way, or accompany any prospective LESSEE to conduct ocular inspection on the premises.

7.16 RETURN OF LEASED PREMISES - The LESSEE agrees to return and surrender the Leased Premises at the expiration of the term of this lease in the same condition as it was found at the commencement of this lease (reasonable wear and tear excepted), without any delay whatsoever, devoid of all occupants, furniture, articles and effects of any kind, other than the alterations, additions or improvements which pertain to the LESSOR in accordance with this Contract. The LESSEE shall repair any damage caused to the Leased Premises which cannot be accounted for by reasonable wear and tear and restore the Leased Premises to the condition it was found at the commencement of this lease to the satisfaction of the LESSOR. All keys giving access to all parts of the Leased Premises and/or the common areas (as applicable) shall be returned to the LESSOR, and all expenses incurred in removing from the Leased Premises or Hospital Building, the names, posters, signboards, decoration or advertising matters relating to the LESSEE, including any damage caused by such removal, shall be for the account of the LESSEE.

7.17 DAMAGES FOR HOLD-OVER

a.) If the LESSEE fails to return the Leased Premises to the LESSOR at the end of the term of this lease, the LESSEE shall pay the LESSOR, as damages, a sum equal to twice the rental to be paid by the LESSEE to the LESSOR for the period during which the LESSEE retains possession of the Leased Premises. The exercise by the LESSOR of its rights under this provision shall not be interpreted as a grant of permission to the LESSEE to continue in possession of the Leased Premises beyond the term of this lease, and the damages due to the LESSOR hereunder shall be in addition to the damages which may become due to the LESSOR under the provisions of this Contract.

b.) If the Leased Premises are not surrendered at the expiration of the term of this lease, the LESSEE shall be responsible to the LESSOR for all damages which the latter may suffer by reason thereof and will indemnify the LESSOR against any and all claims made by any succeeding LESSEE, resulting from the delay in delivering possession of the Leased Premises to such succeeding LESSEE, to the extent that such delay is occasioned by the failure of the LESSEE to surrender the premises on time. The LESSOR shall also be entitled to exercise the remedies under the law and specified elsewhere in this Contract.

ARTICLE 8 - REPRESENTATIONS AND WARRANTIES

8.1 LESSOR'S WARRANTIES - The LESSOR represents, warrants and covenants in favor of the LESSEE that:

(a) it has full right, title and interest to grant the lease of the Leased Premises to the Lessee; and

(b) unless otherwise prevented by force majeure, it shall maintain the LESSEE in peaceful possession of the Leased Premises for the entire term of this Contract.

8.2 BUSINESS OF THE LESSEE - The LESSEE warrants that it is authorized and validly engaged in a **food industry business**.

8.3 MUTUAL WARRANTIES - LESSOR and LESSEE represent and warrant in favor of each other that:

(a) each has full power, authority and legal right to execute, deliver and perform this Contract and when applicable, has taken all the necessary corporate action to authorize the foregoing;

(b) this Contract constitutes the legal, valid and binding obligation of LESSOR or LESSEE, enforceable in accordance with its terms; and

(c) the execution, delivery and performance of this Contract do not and will not violate any provision of, or result in a breach of or constitute a default under any law, regulation or judgment, or violate any agreement binding upon either of them or any of their property.

ARTICLE 9 - INDEMNITIES

9.1 LIMITATIONS ON LIABILITY OF LESSOR - Save for those cases pointing to its gross negligence or willful misconduct, the LESSOR shall not be liable or responsible in any circumstance for any damage or disturbance suffered (whether personally or in respect of the Leased Premises or any contents therein) or by any of its employees, clients, customers or any other persons whosoever. Without limiting the generality of the foregoing, the LESSOR shall not be liable:

(a.) For any loss, damage or injury sustained by the LESSEE or any such other person or any of their properties, caused by or through any accident, event or in any way owing to: (i) the failure, quality, inadequacy, fluctuation, interruption, malfunction, explosion or suspension of electricity, water, telephone, telex, facsimile, emergency power or other public utility services supplied to or intended for the Leased Premises or the Building; (ii) any seepage, overflow or leakage of water from any pipe, drain or automatic sprinkler system or any part within the Building or the influx of rain water into the Leased Premises or the Building; (iii) any activity of rats or other pests or vermins in the Hospital Building; (iv) any failure or breakage of glass of or in the Leased Premises or the Hospital Building; (v) any defect, mechanical breakdown, failure or need for repair, overhaul or any negligent or improper working or operation by any person whomsoever, of the facilities provided for the common use of the LESSEE of the Hospital Building or for the LESSEE in respect of the Leased Premises; (vi) force majeure; (vii) any escape of fumes, smoke, fire or other substances from anywhere within the Hospital Building; (viii) any escape of electric current from electric wiring or cable situated upon or in any way connected with the Hospital Building or any part thereof, or any vibration from or of any part of the Hospital Building or adjoining or neighboring premises; (ix) any act, neglect or default of the LESSEE or other LESSEES of the Building or adjoining neighboring premises, or any of their respective employees, clients, guests or customers; (x) any defective or damaged condition of the Leased Premises or Hospital Building; or (xi) any violation by LESSEE or its employees, representatives or guests or patients of the rules and regulations of any appropriate government agency in connection with the possession and maintenance of the Leased Premises by LESSEE and the conduct of business operations therein; and

(b.) For the security or safekeeping of the Leased Premises or any person or property found therein, including without limitation to all furniture, fixtures, fittings, goods, chattels, samples, personal effects, contents or articles delivered to or left in the Leased Premises.

9.2 INDEMNIFICATION - The LESSEE shall protect, indemnify and hold harmless the LESSOR against any claims for loss or damage suffered by third parties as a consequence of or in connection with

the operation of the concession granted hereby, including but not limited to claims for loss or damage due to the fault or negligence of the LESSEE or its employees or agents; or due to the defects in the items sold, dispensed, used, applied, stacked or served on the premises by the LESSEE.

9.3 NON-ABATEMENT OF OBLIGATION - In no event shall the payment of any amount due hereunder whether as rent, Common Area charges or utility charges abate or cease to be payable on account of the occurrence of any of the causes specified above, except to the extent permitted by this Contract.

ARTICLE 10 - FORCE MAJEURE AND OTHER DISTURBANCES

10.1 OCCURRENCE OF FORCE MAJEURE - The LESSEE shall give the LESSOR written notice of any damage caused to the Leased Premises by reason of force majeure. If the Leased Premises are rendered inaccessible or destroyed by force majeure, without any fault or omission of the LESSEE, its employees, guests, customers or clients, the damage shall be repaired at the expense of the LESSOR, and the disturbance or discontinuance in the possession of the Leased Premises by reason of or occasioned during such repair shall confer no right of any kind to the LESSEE against the LESSOR.

10.2 OPTION TO RESCIND - a.) In the event that (i) the damage resulting from the force majeure renders the Leased Premises totally unfit for use or occupation for more than sixty (60) days, or (ii) the repairs required to render the Leased Premises fit for use and occupation are expected to last for more than ninety (90) days, or (iii) force majeure prevents any party from conducting its business or interferes with the operations of the Hospital Building or Commercial Area for a period of more than sixty (60) days, then either party shall have the right to rescind this Contract by written notice sent to the other party without need of any judicial action at least five (5) business days after the lapse of the applicable period. The rescission of this Contract shall be without prejudice to the rights and remedies of either party against the other in respect of any claim or liability antecedent to such rescission. The obligation to pay rent and other charges or amounts due hereunder shall continue to be in full force and effect until the date such rescission is effected.

b.) In the event, however, that (i) the damage resulting from the force majeure renders the Leased Premises unfit for use or occupation for sixty (60) days or less, or (ii) the repairs required to render the Leased Premises fit for use or occupation are expected to last for ninety (90) days or less, or (iii) either party fails to exercise the option to rescind this Contract within the 5-day period specified there for, or (iv) force majeure prevents any party from conducting its business or interferes with the operations of the Hospital Building or Commercial Area for a period of sixty (60) days or less, then the rent due to the LESSOR and the General Leasing expenses if there be any shall be reduced in proportion to the period the LESSEE has not been able to use the Leased Premises. Notwithstanding such proportionate reduction, all the other obligations of the LESSEE as provided hereunder shall remain in full force and effect. In no case shall any compensation or claim be allowed against the LESSOR by reason of the interruption, annoyance or injury caused to the LESSEE or its property arising from the rescission of this Contract, or any interruption in the use or possession of the Leased Premises, or the repair of any portion of the Hospital Building or the Leased Premises.

10.3 STRIKES AND LOCKOUTS - In the event that a picket line is established in the Leased Premises or in the vicinity thereof due to labor dispute involving the LESSEE or arising in any way from the conduct of the LESSESS's business, the LESSOR, in its sole discretion and by written notice, may require the LESSEE to pay for any additional cost the LESSOR may incur in hiring additional security guards or personnel to maintain the orderliness and cleanliness of the Leased Premises and the Commercial Area or in contracting for such other services as may be required for the well-being, security and welfare of the other LESSEES in the Commercial Area or Hospital Building as a whole. In the event that the LESSEE is prevented from conducting its business in the Leased Premises due to a strike, lockout, labor dispute or any other analogous activity involving the LESSOR or other LESSEES, or due to an accident or cause beyond the control of the LESSOR, the LESSEE hereby unconditionally relieves and releases the LESSOR from any and all liabilities in connection with or arising out of such occurrence(s). This Article shall be without prejudice to the rights or either party to terminate this Contract. In addition, if in the LESSOR's opinion, the duration and/or conduct of the strike or lock-out prejudices the operation of the Hospital Building or the tenants adjacent to the LESSEE, the LESSOR shall have the right to terminate the lease without prejudice to other rights of the LESSOR under this Contract or applicable laws.

ARTICLE 11 - TERMINATION AND ITS CONSEQUENCES

11.1 EVENTS OF DEFAULT AND TERMINATION - This Contract shall be cancelled or terminated upon the occurrence of any of the following events:

(a) the term (or renewal) of this Lease shall have expired or the LESSEE shall have failed to return and surrender the leased Premises on its expiry date.

(b) the Leased Premises shall be closed, deserted or unoccupied for a continuous period of fifteen (15) calendar days;

(c) the LESSEE fails to observe or perform any of the covenants provided hereunder, including without limitation, the failure by the LESSEE to comply with the requirements of this Contract;

(d) any of the LESSEE's representations and warranties as specified hereunder shall prove false in any material respect when made;

(e) the corporate existence of the LESSEE (when organized as corporation or partnership) shall have ceased, or filed insolvency or rehabilitation proceedings with any court, government agency or tribunal;

(f) the LESSEE shall become insolvent or be unable to pay its debts when due or shall commit or permit any act of bankruptcy under the applicable law; and

(g) the occurrence of any other event which entitles the LESSOR or the LESSEE to exercise its right to cancel or terminate this lease pursuant to other provisions in this Contract.

11.2 CONSEQUENCES OF DEFAULT and TERMINATION - Upon the occurrence of any of the foregoing events specified in Article 11.1, LESSOR shall be entitled to exercise any of the following remedies, alternatively or cumulatively at its discretion, in conjunction with or separately from any other right or remedy granted hereunder or under the law, without need for any legal or judicial action or order:

(a) LESSOR is hereby constituted and appointed as LESSEE's attorney-in-fact with the following powers and rights upon the occurrence of any of the events specified in Article 11.1: to (i) open, enter, padlock, secure, enclose or fence the Leased Premises, and/or discontinue the supply of public utilities and services to the Leased Premises, or otherwise take full and complete physical possession and control of the Leased Premises; (ii) assume ownership and take full control and possession of all alterations, additions, improvements or installations placed in or on the Leased Premises which cannot be removed without defacing or injuring any ceiling, floor, wall or any portion of the Building or the Leased Premises, (iii) take an inventory of the equipment, furniture, articles and apparatus found or located in the Leased Premises which may be removed there from without defacing or injuring any ceiling, floor, wall or any portion of the Building or Leased Premises, place any of the same in storage and charge LESSEE the corresponding storage fees there for; (iv) in case LESSEE fails to claim said equipment, furniture, articles or apparatus from storage and liquidate any liability to LESSOR within thirty (30) days from the date LESSOR takes possession of the Leased Premises or of LESSEE's personal properties, to dispose of said properties in a public sale and to apply the proceeds thereof to the payment of whatever liability and/or indebtedness LESSEE may have to LESSOR, including expenses incurred by LESSOR in connection with such sale, without prejudice to the right of LESSOR to collect any deficiency. The appointment of LESSOR as attorney-in-fact of LESSEE shall be considered coupled with an interest and, hence, shall be irrevocable.

(b) The entire Security Deposit shall be forfeited in favor of LESSOR, and LESSEE shall continue to be liable for all amounts due and owing from it under this Contract. All these amounts shall be due to LESSOR in addition to whatever damages, whether actual or consequential, which may be due under Articles 7.5 as well as the damages LESSOR may incur or suffer arising from the termination of this Contract. In no case shall any amount due hereunder from LESSEE be applied against the Security Deposit, it being understood that the entire amount thereof shall accrue by virtue of forfeiture in favor of LESSOR.

(c) LESSOR shall be subrogated to the rights of LESSEE as sublessor, if LESSEE has, without authority and in violation of the terms of this contract, subleased the Leased Premises to a third party.

(d) Should LESSOR be compelled to seek judicial relief against LESSEE or any of its employees, agents or representatives, LESSEE shall, in addition to the damages mentioned above, pay an amount equivalent to twenty (20%) percent of the amount claimed in the complaint, as attorney's fees (with a minimum of P100,000.00), aside from the costs of the litigation and other expenses which the law may entitle LESSOR to recover from LESSEE.

ARTICLE 12 - GENERAL PROVISIONS

12.1 EXPROPRIATION - In the event that the Leased Premises or any part of the Building is expropriated during the period of this lease by any instrumentality of the Government or by any other entity with authority to exercise such power, either party may rescind this Contract upon giving the other party thirty (30) days prior written notice thereof, without incurring any liability or providing the other party with any basis for an action for damages. In case of such expropriation, LESSEE hereby unconditionally relieves and releases LESSOR from any and all liability under this Contract in connection with or arising out of such expropriation proceedings and agrees that the compensation to be received by LESSOR shall belong to it wholly as owner of the Leased Premises, without prejudice to whatever recourse LESSEE may have against the expropriating entity on account of damage done or caused to it or its property by reason of such expropriation. Upon such expropriation, LESSOR shall return to LESSEE the security deposit given under this Contract, after deducting the payment for rentals, utilities and other amounts which remain due and owing to LESSOR.

12.2 NON-WAIVER - The failure of any party to insist upon a strict performance of any of the terms, conditions and covenants hereof shall not be deemed a relinquishment or waiver of such terms, conditions or covenants granted to such party, nor shall it be construed as a condonation of any subsequent breach or default of the terms, conditions and covenants hereof, which terms, conditions and covenants shall continue to be in full force and effect. The subsequent acceptance of rent by LESSOR shall not be deemed to be a waiver of any prior breach by LESSEE of any term, covenant or condition for this lease, regardless of LESSOR's knowledge of such prior breach at the time of acceptance of such rent. No waiver by LESSOR of any of its rights under this Contract shall be deemed to have been made unless expressed in writing and signed by LESSOR.

12.3 NOTICE - Where demand or notice is required to be given under this Contract, notice sent to LESSEE at the Leased Premises or at the address specified above by registered mail or by personal delivery shall be considered sufficient compliance with the requirement of notice or demand. All demands or notices required under this Contract to be made to LESSEE shall also be sufficient if posted at the Leased Premises.

12.4 ASSIGNMENT OF RIGHTS – LESSOR reserves the right to assign and convey its rights to this Contract in favor of its affiliates or subsidiaries, including any surviving entity or any other successor-in-interest resulting from a merger or otherwise, after notice in writing to LESSEE. LESSOR binds itself to require its assignee to respect and abide by all the terms and conditions of this Contract.

12.5 NON-LIABILITY FOR OBSTRUCTION – LESSOR shall not be liable for any obstruction and/or damages to LESSEE by virtue of future constructions of incoming tenants/occupants of the Hospital Building. However, LESSOR shall exert its best efforts to implement and enforce the construction rules and regulations for the Building to prevent any such obstruction.

12.6 LAW AND VENUE APPLICABLE - This Contract shall be construed, interpreted and governed by the laws of the Philippines. Each party irrevocably submits to the jurisdiction of the courts in Makati City for the purpose of enforcing any right or obligation under or arising out of this Contract.

12.7 ENTIRE AGREEMENT - This Contract constitutes the complete understanding between the parties with respect to the subject matter hereof and supersedes any prior expression of intent, representation or warranty with respect to this transaction. This Contract may be amended but only with an instrument in writing signed by persons duly authorized by the parties herein.

Moreover, the LESSEE hereby accepts and acknowledges that the LESSEE shall not have any vested rights acquired by virtue of any of the provisions of this contract, as the granting of this Contract of Lease upon the LESSEE is purely discretionary on the part of the LESSOR and the LESSOR furthermore reserves the right to unilaterally change, amend, revoke or add any provision of this Contract without incurring any liability to the LESSEE, or any other party.

12.8 SEVERABILITY - If any one or more of the provisions of this Contract is declared invalid or unenforceable in any respect under any applicable law, the validity, legality or enforceability of the remaining provisions contained herein shall not in any way be affected or impaired and shall govern the relationship between the parties herein.

12.9 CONFIDENTIALITY – Parties undertake to treat and all such Confidential Information as strictly confidential and not to divulge it to any third party, including future clients, for any purpose whatsoever and not to make use of such Confidential Information, or any part thereof, for any purpose without MMC's prior written consent. The obligation of confidentiality and non-disclosure in this Agreement shall be permanent and perpetual.

Where applicable, LESSEE shall comply with the provisions of the Data Privacy Act of 2012 and

its implementing rules and regulations.

ARTICLE 13 – OTHER CONDITIONS

13.1 The LESSEE recognizes its duty that his representative and employees shall be subject to the appropriate code of conduct, security and safety rules and regulations of LESSOR such as, but not limited to, searches upon entry to and exit from the premises. LESSOR's representative and employees shall display their identification cards at all times while within the premises of the hospital. LESSEE shall submit to LESSOR its manpower complement, and any changes thereafter, for the release of identification cards charged to his account.

13.2 **MARY GRACE FOODS, INC.**, shall be free to use any means and devices that conforms to the standard of JCI, ISO or any other Hospital Accreditation or Membership that is not contrary to law and regulation which it believes will best enable it to perform its obligations under this Contract. **Mary Grace** should not be subject to the control and supervision of Medical Doctor's, Inc. (Makati Medical Center) and shall be answerable to Medical Doctor's, Inc. (Makati Medical Center) only in respect of the performance results of the contracted work. It is understood that all persons assigned by **Mary Grace** to Medical Doctor's, Inc. (Makati Medical Center) are competent, capable and qualified to do job and results of their contracted work are subject to the approval of Medical Doctor's, Inc. (Makati Medical Center) management.

ARTICLE 14 – ANTI-BRIBERY AND ANTI-CORRUPTION CLAUSES

The parties agreed to comply with and be bound by the provisions provided in Annex A which is incorporated as an integral part of this agreement.

IN WITNESS WHEREOF, the parties have hereunto signed this Contract on the date and at the place first above-written.

MEDICAL DOCTORS, INC.
(LESSOR)

By:

ARNOLD C. OCAMPO
Senior Vice President &
Chief Finance Officer CO - CEO

MARY GRACE FOODS, INC.
(LESSEE)

By:

ADRIAN P. DIMACALI
Director

SIGNED IN THE PRESENCE OF

ENGR. GERRY E. CUNANAN
Division Head
Facilities Management & Engineering Division

CHRISTINE JOY BALINAS- ACIBAR
FINANCE SUPERVISOR

Annex A

ANTI-BRIBERY AND ANTI-CORRUPTION CLAUSES

A. **Mary Grace Foods, Inc.,** ("Third Party") acknowledges and agrees that it is the policy of Makati Medical Center ("the Company") to comply fully with all applicable laws and regulations of all jurisdictions in which it does business. Third Party warrants and represents that it has not taken and will not take any action that would constitute a violation, or implicate the Company in a violation, of any law of any jurisdiction in which it performs business, or the anti-corruption instruments of the European Union, the United States Foreign Corrupt Practices Act of 1977, as amended ("FCPA"), the U.K. Bribery Act of 2010, and where applicable, legislation enacted by member States and signatories implementing the OECD Convention Combating Bribery of Foreign Officials (collectively, "Anti-Corruption Laws").

B. Third Party represents, warrants, and agrees that:

1. Third Party is neither a governmental entity nor an instrumentality of a government. If Third Party becomes a governmental entity or instrumentality of a government during the term covered by the document, Third Party shall notify the Company immediately so the Company may, and hereby reserves the right to, take whatever precautions and actions may be appropriate to assure compliance with applicable Anti-Corruption Laws;

2. None of Third Party's principals, owners, officers, directors, or agents is currently a Government Official.[1] If any of Third Party's principals, owners, officers, directors, or agents becomes a Government Official during the term covered by this document, Third Party shall notify the Company immediately so the Company may, and hereby reserves the right to, take whatever precautions and actions may be appropriate to assure compliance with applicable Anti-Corruption Laws;

3. No Government Official is associated with, or owns an interest, whether direct or indirect, in Third Party, or has any legal or beneficial interest in the proposed agreement/relationship contemplated herein between Third Party and the Company, or any payments to be made by the Company to Third Party under such agreement. If a Government Official obtains such an interest, Third Party shall notify the Company immediately so the Company may, and hereby reserves the right to, take whatever precautions and actions may be appropriate to assure compliance with applicable Anti-Corruption Laws;

4. Neither Third Party nor any of its principals, owners, officers, directors, or agents has promised to make, will promise to make, or will cause to be made, in connection with the proposed agreement contemplated herein, any Payments[2] (i) to or for the use or benefit of any Government Official; (ii) to any other person either for an advance or reimbursement, if it knows or has reason to know that any part of such Payment will be directly or indirectly given or paid by such other person, or will reimburse such other person for Payments previously made, to any Government Official; or (iii) to any other person or entity, to obtain or keep business or to secure some other improper advantage, the payment of which would violate applicable Anti-Corruption Laws;

5. Any compensation provided by the Company is for Third Party's sole benefit and will not be transferred or assigned to any other party and Third Party shall make no Payments to other third parties on behalf of the Company;

6. Third Party has effective controls that are sufficient to provide reasonable assurances that violations of applicable Anti-Corruption Laws will be prevented, detected, and deterred, which includes but not limited to:

   a) Third Party shall adopt and implement, on or prior to the effective date of this agreement, an anti-bribery and anti-corruption policy ("Anti-Corruption Policy").

   b) Third Party and its Affiliates will have, within ninety (90) days after the effective date of this agreement, effective disclosure controls and procedures and an internal accounting controls system that is sufficient to provide reasonable assurances that violations of Anti-Corruption Laws will be prevented, detected, and deterred.

7. The operations of Third Party and its Affiliates have been conducted at all times in compliance with applicable financial recordkeeping and reporting requirements of the U.S. Currency and Foreign Transaction Reporting Act of 1970, as amended, the U.S. Money Laundering Control Act of 1986, as amended, and all money laundering-related laws of all jurisdictions where Third Party conducts business or owns assets, and any related or similar Law issued, administered

[1] See "Defined Terms," below.
[2] See "Defined Terms," below.

or enforced by any Government Authority (collectively, the "Money Laundering Laws"). No Proceeding by or before any Government Authority involving Third Party with respect to the Money Laundering Laws is pending or, to the knowledge of Third Party, is threatened.

8. Third Party shall immediately notify the Company of any violation or potential violation of Anti-Corruption Laws or Money Laundering Laws and shall be responsible for any damages to the Company from Third Party's or its agents' violation or potential violation of Anti-Corruption Laws or Money Laundering Laws.

9. The Company is entitled to, and hereby reserves the right to, take appropriate actions necessary to ensure compliance with Anti-Corruption Laws or Money Laundering Laws.

Defined Terms

"Anti-Corruption Laws" means any law of any jurisdiction in which Third Party performs business, or of the United States, of the European Union, or of the United Kingdom, including without limitation, the Foreign Corrupt Practices Act of 1977, as amended ("FCPA"), the U.K. Bribery Act of 2010, and where applicable, legislation enacted by member states and signatories implementing the OECD Convention Combating Bribery of Foreign Officials.

"Governmental Authority" means any nation or government or any province, state or any other political subdivision thereof, any entity, authority or body exercising executive, legislative, judicial, regulatory or administrative functions of or pertaining to government, including any government authority, agency, department, board, commission or instrumentality, of any other jurisdiction in which a party to this Agreement is resident, any court, tribunal or arbitrator and any securities exchange or body or authority regulating such securities exchange.

"Government Official" means all officers or employees of a government department, agency, or instrumentality at all levels and subdivisions (i.e., local, regional, national); permitting agencies; customs officials; candidates for political office; officer or employee of political parties; and officials of public international organizations (e.g., the Red Cross). This term also includes officers or employees of government-owned or controlled commercial enterprises such as state-owned or controlled universities, airlines, oil companies, health care facilities, or other vendors. The term also includes family members and close associates (i.e., person representing or acting on behalf of the official in meetings and/or business partners, etc.) of such individuals (e.g., it is not permissible to give a lavish gift to the sibling, spouse, or child of a government official if a gift to the latter would be prohibited under this Policy). This term also includes healthcare professionals (HCPs) who are practicing in government hospitals or any department, agency, or instrument of a government, when any of the following instances apply: (i) the HCP has an official decision-making role, (ii) the HCP has responsibility for performing regulatory inspections, government authorizations or licenses, or (iii) the HCP has the actual or perceived capacity to influence or make decisions with the potential to affect the business of the Company or any of its subsidiaries.

- Specific examples may include officers or employees of a government department, agency or instrumentality; permitting agencies; custom officials; political party officials; candidates for political office; officials of public international organizations (e.g., the Red Cross); employees or affiliates of an enterprise that is owned, sponsored, or controlled by any government—such as a health care facility, bank, utility, oil company, university or research institute; and any other position as defined by applicable Anti-Corruption Laws.

"Payment" means any transfer of anything of value which includes bribe, rebate, payoff, influence payment, kickback, or gift of anything of value. It may be in the form of cash, travel expenses, entertainment, offers of employment, provision of free services, and business meals. Payments may also include event sponsorships, consultant contracts, fellowship support, job offers, and charitable contributions made at the request of, or for the benefit of, an individual, his or her family, or other relations, even if made to a legitimate charity.

(ABSENCE OF) CONFLICT OF INTEREST

"This Contract is entered into on a fair and arms-length basis, without duress or coercion, and is to be interpreted as an agreement between two parties of equal bargaining capacities. Notwithstanding any ties between the parties on ownership, affiliation or otherwise, the terms and conditions of the Contract are the same as they would have been, had the parties not have any relation with each other whatsoever."

ANNEX B - DATA PROTECTION

In compliance with Data Privacy Act (DPA) or R.A.10173, its Implementing Rules and Regulations, and related circulars from the National Privacy Commission (NPC), this annex aims to provide a clear statement on the protection of Personal Data as well as other Confidential Information of MMC, the processing of which are outsourced to the Service Provider engaged in this Agreement.

1. SCOPE

This annex addresses the processing of all Personal Data, as well as other Confidential Information of MMC, which are or may be received, accessed or acquired by the Service Provider and/or by its Subcontractor in the course of the performance of the obligations under the Agreement.

DEFINITION OF TERMS

a. "Personal Information", "Sensitive Personal Information", "Personal Data", "Data Subject", "Processing", "Personal Information Controller", and "Personal Information Processor", shall have the same meaning as set forth in the Implementing Rules and Regulations of Republic Act 10173, otherwise known as the Data Privacy Act of 2012, as may be amended and supplemented from time to time;

b. Confidential Information of MMC. MMC considers Confidential all personal information and sensitive personal information as defined under DPA; and business' confidential or sensitive information. The latter pertains to all materials and information of whatever nature (e.g. written, electronic, oral) relating to management and operational processes, business plans, business agreements, financial information, trade secrets, formula, technology methods, and the like of MMC, its affiliates, or contractors. The term shall likewise include information of whatever nature in relation to clients/patients of MMC; and computer configuration details such as IP address, MAC address, Host name (which may be used for cyber fraudulent activities like spoofing).

   The term shall likewise mean analysis, compilations, studies, notes, reports, presentations and any other documents prepared by the parties which contain or otherwise reflect or are generated from any such information as specified in the preceding paragraph.

2. RESPONSIBILITIES AND WARRANTIES

This contract is binding on MMC acting as a data controller or Personal Information Controller, and the Service Provider acting as the data processor or Personal Information Processor.

2.1 Whenever applicable, in carrying out the transfer of data under this Agreement, MMC and Service Provider shall, at all times, comply with the provisions of the relevant Privacy Laws, and all other laws and government issuances which are now, or will be, promulgated relating to data privacy and the protection of personal information.

2.2 The Service Provider represents and warrants that, for its processing of MMC Confidential Information that it may receive or access as instructed or outsourced to it by MMC, it shall:

a) Process Personal Data and other Confidential Information only in accordance with MMC's documented instructions and for the purposes authorized by MMC, including transfers of personal data to another country or an international organization, unless such transfer is authorized by law;

b) Keep Personal Data and other Confidential Information secure; Only authorized and designated employees/personnel may process personal and/or sensitive personal information. Ensure that an obligation to maintain and safeguard confidentiality is imposed on these personnel.

c) Implement appropriate technical, physical, and organizational security measures, in accordance to DPA-IRR's Rule VI, to protect Personal Data as well as other Confidential Information against natural dangers such as accidental loss or destruction, and human dangers such as fraudulent misuse, unauthorized or unlawful access, destruction, alteration and contamination;

   Implement, where applicable, world class / up-to-date information technology/systems and processes for the management of cybersecurity and data privacy concerns of MMC, including but not limited to:

   - acceptable encryption standard as prescribed by NPC, for data in storage and while in transit;
   - robust IT Security solution (e.g. network firewall, anti-virus);
   - security/privacy-by-design Apps
   - software version upgrade as needed to ensure continuous vendor technical support, security updates or patches which are necessary to counter cyberattacks;
   - process for regular/up-to-date back-ups including Business Continuity Plan

- secure Information Security day-to-day practices (e.g. secure workplace; secure disposal; secure media handling; strong/unshared/uncompromised user logins or passwords; regular Information Security awareness & education)
- regular monitoring for security breaches, and a process both for identifying and accessing reasonably foreseeable vulnerabilities in their computer networks, and for taking preventive, corrective, and mitigating action against security incidents that can lead to a personal data breach

d) Not permit subcontractors or other third-party processor to process Personal Data and other Confidential Information in connection with its obligations under this contract, nor share said information with other data controller or Personal Information Controllers, without the prior written consent of MMC; Provided, that any such arrangement shall ensure that the same obligations for data protection under this contract are implemented.
e) Assist MMC, by appropriate technical and organizational measures and to the extent possible, fulfill the obligation to respond to requests by data subjects relative to the exercise of their rights under Privacy laws.
f) Assist MMC in ensuring compliance with the Data Privacy Act and other relevant laws relating to data privacy.
g) At the choice of MMC, delete, destroy, or return all Personal Data and other Confidential Information to the former after the end of the provision of services relating to the processing, or in compliance to a retention requirement or policy: Provided, that this includes deleting or destroying existing copies unless storage is authorized by the Data Privacy Act or another law.
h) Make available to MMC all information necessary to demonstrate compliance with the obligations laid down in the Data Privacy Act, and allow for and contribute to audits, including inspections, that may be conducted by MMC or another auditor mandated by the latter.
i) Promptly inform MMC if, in its opinion, any instruction violates, or may be construed to violate, any provision of the Data Privacy Act, related circulars, and other relevant laws relating to data privacy.
j) Follow and comply with MMC's data security & privacy policy, and other related policies or updates as may be advised by MMC from time to time; and shall comply with the requirements of the Data Privacy Act, its Implementing Rules and Regulations, circulars and issuances of the National Privacy Commission, and other applicable laws , including designation of an individual or individuals who shall function as data protection officer, compliance officer or otherwise be accountable for ensuring compliance with DPA and relevant privacy laws.
k) Not disclose any Confidential Information obtained in connection with this Agreement without the prior written consent of MMC. The Service Provider may disclose Confidential Information which is required to be disclosed under any Applicable Law or by a court or government agency, provided that, prior to disclosing any such information, the Service Provider promptly notifies MMC in writing and the Service Provider has exhausted all reasonable steps not to disclose such information.
l) Include all the foregoing in its security and privacy policy.

3. REASONABLE REQUESTS, CODES OF CONDUCT AND ADVICE

The Service Provider must in respect of any Confidential Information, held in connection with this Agreement comply with any reasonable requests or directions issued by MMC from time to time arising directly from, or in connection with, the exercise of the functions of any officer exercising authority under any Privacy Laws.
From time to time, MMC may direct as deemed necessary that the Service Provider take specified steps or achieve specified types or levels of security, secrecy or privacy protection in respect of the Confidential Information and that the Service Provider must comply with any such directions.

4. AGENT OR SUB-CONTRACTOR

The Service Provider must ensure that any person to whom the Service Provider discloses Confidential Information, provided that such engagement to further process data is with the prior instruction or approval of MMC, complies with the obligations of the Service Provider under this Agreement.

5. TRANSFER OF DATA

Without the prior written approval of MMC, the Service Provider must not:

5.1 transfer or allow access by a person, or permit the transfer or access by a person, outside of Philippines of Confidential Information held in connection with this Agreement; or
5.2 transfer or allow access by a person, or permit the transfer or access by a person, outside of a jurisdiction of Confidential Information held in connection with this Agreement, where any applicable Privacy Laws specifically impose limitations on such transfers to or access by persons outside that jurisdiction.

6. REMEDIES

The Service Provider acknowledges that:

6.1 MMC may suffer financial and other loss and damage if any unauthorized act occurs in relation to Confidential Information, including Personal Data, and that monetary damages may be an insufficient remedy; and

6.2 in addition to any other remedy available at law or in equity, MMC is entitled to seek relief by way of injunction or otherwise to prevent a breach of, and to compel the specific performance of this Agreement.

7. BUSINESS CONTINUITY

7.1 Where applicable, Service Provider shall ensure that a Business Continuity Plan, regularly reviewed and updated as needed, is in place that will be activated as necessary to ensure continuity of critical services/business and fulfil obligations under the Agreement.

7.2 Service Provider shall notify MMC as soon as reasonably practicable if it believes that there has been, or is likely to be, a material disruption to business continuity that requires the implementation of the Business Continuity Plan.

7.3 Where applicable, the Service Provider shall perform a secure backup of all MMC Data that are processed in its custody and shall ensure that an up-to-date backup is stored at another of the Service Provider's premises as part of Business Continuity Plan and is available timely to MMC upon request. The Service Provider shall make sure that systems on which the Service Provider holds MMC Data, including backup data, are secure systems that ensure data integrity in accordance with good industry practice.

8. PROCESSING OF DATA BY THIRD PARTIES

8.1 If the Service Provider requests MMC's consent to process Data or any part of the Processing, whether itself or through a Subcontractor, from an Offshore Jurisdiction, the Service Provider shall provide to MMC all information and assistance required by MMC to enable MMC to assess the potential effect on the Services, logical and physical security, data transfer arrangements and the Service Provider's performance monitoring and management systems and controls. MMC may grant or withhold its consent, and impose any conditions on its consent, in its absolute discretion. In no case shall any Personal Information be collected, recorded, organized, stored, updated, modified, retrieved, used, consolidated, blocked, erased destroyed, accessed or otherwise processed from an Offshore Location without the prior express written consent of MMC.

8.2 Contracts with a Third-Party Processor or Subcontractor who will process data must include the Third-Party Processor's undertaking to make the same representations and warranties of the Service Provider as stipulated in this Agreement.

9. DATA BREACH

9.1 Upon knowledge of, or when there is reasonable belief by the Service Provider or its Subcontractor / Third Party Processor that, a personal data breach requiring notification has occurred, the Service Provider or its Subcontractor / Third Party Processor shall notify MMC of the breach within twenty-four (24) hours or earlier of such knowledge or forming of reasonable belief, to enable MMC to notify the National Privacy Commission (NPC) and the affected data subjects within the period prescribed under Data Privacy Act and its implementing rules and regulations.

9.2 The notification shall at least describe the nature and details of the breach, the personal data possibly involved, and the measures taken by the entity to address the breach. The notification shall also include measures taken to reduce the harm or negative consequences of the breach.

9.3 The Service Provider or its Subcontractor / Third Party Processor shall follow and adhere to DPA-IRR Rule IX (Data Breach Notification), NPC's Circular 16-03 (Personal Data Breach Management) and applicable Privacy Laws pertaining to breach prevention and management.

ANNEX C – KEY PERFORMANCE INDICATOR

INDICATORS	MEASURE
Timely delivery of goods and services	100%
Compliance to Health Standards	100%

ACKNOWLEDGMENT

REPUBLIC OF THE PHILIPPINES)
Makati CITY) S.S.

BEFORE ME, a Notary Public, for and in the above jurisdiction, personally appeared the following:

NAME	Evidence of Identity	DATE/PLACE ISSUED
ARNOLD C. OCAMPO	Passport No. P0693064B	February 19, 2019 / DFA NCR EAST

known to me and to me known to be the same persons who executed the foregoing instrument and they acknowledged to me that the same are their own free and voluntary act and deed, and the free and voluntary act and deed of the corporation they represent.

WITNESS MY HAND AND SEAL.

Doc. No. 03;
Page No. 01;
Book. No. 01;
Series of 2025

MARCOS ARCADIO G. LAURON
Notary Public until 31.12.26
Appt. No. M-445/Makati
Roll of Attorneys Number 39736
IBP No. LRN 09499. 06.01.11. Makati
PTR No. 10101317. 06.01.25. Marikina
MCLE VIII 0007725. 26.01.24
3107 Knightsbridge Res Poblacion Makati
Documentary Stamp Tax Paid

ACKNOWLEDGMENT

REPUBLIC OF THE PHILIPPINES)
TAGUIG CITY CITY) S.S.

BEFORE ME, a Notary Public, for and in the above jurisdiction, personally appeared the following:

NAME	ID	DATE/PLACE ISSUED
ADRIAN P. DIMACALI	Passport No: P7271334A	May 22, 2018 / DFA Manila

known to me and to me known to be the same person who executed the foregoing instrument and he acknowledged to me that the same is his own free and voluntary act and deed, and the free and voluntary act and deed of the corporations he represents.

WITNESS MY HAND AND SEAL.

Doc. No. 86;
Page No. 19;
Book. No. IV;
Series of 2025

ATTY. PAUL VINCENT P. SIOCHI
Notary Public for Taguig City
Notarial Commission No. 53 (2024-2025)
Roll of Attorneys No. 68383
IBP Lifetime No. 016219; 05/08/17; Makati City
PTR No. A-6465786; 01/13/2025; Taguig City
MCLE Compliance No. VIII-0020561; 01/24/2025
Blk 5, Lot 21, Phase 2, Pinagsama Village, Taguig City